

Court No. - 46

Case :- WRIT - C No. - 21712 of 2020

Petitioner :- Shakeela Begum

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Deena Nath

Counsel for Respondent :- C.S.C.,Ajay Kumar

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard Sri Deena Nath, learned counsel for the petitioner, learned Standing Counsel appears on behalf of respondent no. 1 and Sri Ajay Kumar, learned counsel for the respondent nos. 2, 3 and 4.

The instant writ petition has been filed with the following relief;

I) Issue a writ, order or direction in the nature of certiorari to quash the demand notice dated 20.9.2019 (Annexure No. 3 to the writ petition) issued by the respondent no. 4 i.e. Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand Illrd, district Meerut.

II) Issue a writ, order or direction in the nature of mandamus commanding the respondents not to take any coercive measure against the petitioner in pursuance of demand notice dated 20.9.2019 issued by the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand Illrd, district Meerut.

III) Issue a writ, order or direction in the nature of mandamus directing the respondents to fix smart meter in pursuance to the letter dated 5.8.2019 issued by the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand Illrd, district Meerut forthwith.

IV) Issue any other writ, order or direction as this Hon'ble Court may deem fit and proper under the facts and circumstances of the case.

V) Award the cost of petition to the petitioner throughout."

Learned counsel for the petitioner submits that without supplying the copy of the provisional assessment order recovery proceedings have been initiated.

The learned counsel for the power corporation on instruction submits that the officer of the power corporation inspected the premises of the petitioner on 18.7.2019, thereafter the provisional assessment order was issued to the petitioner. The petitioner submitted her objections on 28.1.2020, copy of which has been annexed as Annexure-4 to the writ petition. He further submits that taking

into consideration the objections filed by the petitioner final assessment order has been passed on 12.2.2020 and the said order has been supplied to the counsel for the petitioner during the course of the day. He further submits that the petitioner has a remedy to file an appeal under Section 127 of the Electricity Supply Code. The availability of the alternative remedy has not been disputed by the learned counsel for the petitioner.

The writ petition is dismissed on account of availability of alternative remedy.

Order Date :- 16.12.2020

Shahnawaz